

Carapace & Cortex Contract and License Package

— First Draft

Prepared for internal business planning and attorney review.

Company: Carapace LLC

Product: Cortex

Version: Draft 0.1

Date: [Insert Date]

Important drafting note: This package is a business-first legal draft intended to organize the commercial structure, license model, service obligations, and client-facing terms. It should be reviewed, revised, and finalized by qualified legal counsel before use.

Package Overview

This draft package includes five core documents:

1. Cortex Community Edition License

For personal, educational, hobbyist, research, and non-commercial use.

2. Cortex Commercial License Agreement

For paid business use of Cortex, including the platform license, operator thresholds, custody controls, and commercial rights.

3. Carapace Strategy & Support Retainer Terms

For monthly support, workflow tuning, agent updates, quarterly reviews, response times, and scope boundaries.

4. Cortex Discovery & Integration Sprint Agreement

For the \$3,000 pilot, including workflow mapping, credential/security audit, sandbox deployment, 1–2 automations, ROI projection, and commercial credit.

5. Order Form / Statement of Work Template

A short commercial document used to activate a pilot, license, retainer, add-on module, or private deployment.

Optional future documents to add:

- Partner Program Agreement
- Marketplace / Archetype Contributor Terms
- Privacy Policy
- Data Processing Addendum

- Acceptable Use Policy
 - Security Exhibit
 - Consulting Master Services Agreement
 - End User License Agreement for enterprise distribution
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1. Cortex Community Edition License

CORTEX COMMUNITY EDITION LICENSE AGREEMENT

This Cortex Community Edition License Agreement (the **"Agreement"**) governs use of the Cortex Community Edition software and related documentation made available by Carapace LLC (**"Carapace," "we," "us," or "our"**).

By downloading, installing, accessing, or using Cortex Community Edition, you agree to this Agreement. If you do not agree, do not use Cortex Community Edition.

1. Purpose

Cortex Community Edition exists to make personal AI infrastructure accessible to individuals, students, hobbyists, researchers, and non-commercial builders.

Cortex Community Edition is supported by commercial licensing, consulting, training, partnerships, and community contributions. Community Edition may include limited Carapace-owned sponsorship notices explaining the project, licensing options, consulting services, community initiatives, or related Carapace offerings.

Cortex will not serve third-party advertising, operate as an advertising network, or use deceptive promotional interfaces.

2. Definitions

"Cortex" means the software platform, code, application, agent orchestration system, workflow harness, documentation, and related components provided by Carapace under this Agreement.

"Community Edition" means the free version of Cortex made available for personal, educational, hobbyist, research, non-commercial experimentation, and other expressly permitted uses.

"Commercial Use" means use of Cortex by or for a business, revenue-generating activity, paid client work, internal business operations, production commercial workflow, organization-wide deployment, or any activity intended to produce commercial value, unless expressly permitted under this Agreement.

“Active Operator” means a unique control context managing an isolated workflow environment, credential tunnel, approval gateway, or execution node. Each authenticated control session, filemap sync, or independent automation endpoint may count as one Active Operator.

“Carapace Services” means consulting, deployment, integration, onboarding, training, infrastructure design, agent automation, workflow design, and related professional services offered by Carapace.

“License Key” means a license credential, token, certificate, account entitlement, or other mechanism issued by Carapace to authorize commercial use or remove Community Edition limitations.

3. License Grant

Subject to your compliance with this Agreement, Carapace grants you a limited, non-exclusive, non-transferable, revocable license to install and use Cortex Community Edition for the following permitted purposes:

- Individual personal use
- Hobbyist use
- Student use
- Educational exploration
- Non-commercial research
- Personal workflow experimentation
- Non-commercial prototyping
- Community learning and development

This license does not grant rights for Commercial Use except as expressly permitted by Carapace in writing.

4. Community Edition Limits

Unless otherwise stated in a written agreement with Carapace, Community Edition is limited to:

- Up to **[X] users**
- Up to **[Y] Active Operators**
- Up to **[\$Z annual revenue threshold]** for any organization evaluating Cortex
- No production commercial deployment beyond these limits
- No paid client deployment without a commercial license
- No managed service provider, agency, reseller, or consultant use on behalf of third parties without written authorization

Carapace may update Community Edition limits from time to time. Updates will not retroactively remove rights already granted for prior versions, unless required for security, legal compliance, or prevention of abuse.

5. Commercial Use Trigger

A Cortex Commercial License is required if you use Cortex for or within:

- A business, company, agency, firm, studio, nonprofit, institution, or other organization beyond permitted Community Edition limits
- Paid client work
- Internal business automation
- Production business workflows
- Revenue-generating content, media, operations, or services beyond permitted limits
- Team deployments beyond permitted Community Edition limits
- Private deployment for business use
- Multi-workspace governance
- Managed deployment for third-party clients
- Commercial support, hosting, resale, or consulting services

Using Cortex inside your business is welcome. Commercial licenses help fund Community Edition development while providing legal clarity for business use.

6. Sponsorship Notices and Ethical Promotional UI

Community Edition may display Carapace-owned sponsorship notices. These may include:

- Startup splash screen explaining Community Edition
- Dashboard banner identifying Community Edition status
- Contextual prompts for licensing, consulting, community participation, partner programs, or relevant Carapace services
- Success stories, project updates, community showcases, training events, or development sponsorship opportunities

Carapace agrees that Community Edition sponsorship notices must not use dark patterns. Specifically, Carapace will not intentionally include:

- Countdown timers designed to pressure purchase
- Fake close buttons
- Hidden dismiss controls
- Misleading button placement
- Forced interactions unrelated to startup or relevant context
- Modal interruptions during active work
- Guilt-based language
- Deceptive licensing statements
- Third-party advertising network scripts
- Telemetry-based ad targeting

When a valid commercial license is detected, Community Edition promotional notices will be disabled for the licensed environment, except for account, license status, legal, security, or required administrative notices.

7. No Third-Party Advertising

Cortex will not become a third-party advertising platform. Promotional UI in Community Edition may only promote Carapace-owned products, services, documentation, events, community initiatives, partner programs, or ecosystem resources related to Cortex.

8. Ownership

Carapace retains all right, title, and interest in and to Cortex, including all intellectual property rights, software, architecture, documentation, trademarks, logos, workflows provided by Carapace, templates, and related materials, except for third-party components or open-source dependencies governed by their own licenses.

You retain ownership of your own content, files, prompts, workflows, local configurations, data, outputs, and materials created independently by you, subject to any applicable third-party rights.

9. User Content and Data Custody

Cortex is designed around custody-first principles. Unless you separately engage Carapace Services or use hosted components, Carapace does not claim ownership over your files, local data, prompts, outputs, credentials, or workflow content.

You are responsible for your own data, backups, security, access controls, credential management, compliance obligations, and lawful use of Cortex.

10. Prohibited Uses

You may not use Cortex to:

- Violate applicable law
- Infringe intellectual property rights
- Circumvent licensing limits
- Remove or alter license checks except as expressly permitted
- Resell Cortex or offer managed Cortex services without authorization
- Misrepresent Cortex as your own product
- Use Carapace trademarks without permission
- Deploy Cortex for production commercial use without a license
- Reverse engineer hosted or proprietary Carapace services except where such restriction is prohibited by law
- Use Cortex for malicious activity, unauthorized access, credential theft, malware, phishing, spam, or harmful automation

11. No Warranty

Cortex Community Edition is provided **“as is”** and **“as available.”** Carapace disclaims all warranties, express or implied, including warranties of merchantability, fitness for a particular purpose, title, and non-infringement.

Community Edition may contain bugs, interruptions, incomplete features, or experimental capabilities. You use it at your own risk.

12. Limitation of Liability

To the maximum extent permitted by law, Carapace will not be liable for indirect, incidental, consequential, special, exemplary, punitive, or lost profit damages arising from use of Cortex Community Edition.

Carapace's total liability under this Agreement will not exceed **\$100** or the minimum amount permitted by applicable law, whichever is greater.

13. Termination

Carapace may terminate this Agreement if you materially breach its terms. Upon termination, you must stop using Cortex Community Edition except as otherwise permitted by law or by a separate written agreement.

14. Changes to this Agreement

Carapace may update this Agreement from time to time. Updated terms will apply to future downloads, updates, or versions. Continued use of updated versions after notice constitutes acceptance of the updated terms.

15. Governing Law

This Agreement is governed by the laws of the State of **[Insert State]**, without regard to conflict of laws rules.

16. Contact

Carapace LLC
[Insert Address]
[Insert Email]
[Insert Website]

2. Cortex Commercial License Agreement

CORTEX COMMERCIAL LICENSE AGREEMENT

This Cortex Commercial License Agreement (“**Agreement**”) is entered into by and between Carapace LLC (“**Carapace**”) and the customer identified in the applicable Order Form (“**Client**”).

Partnership Statement. Carapace does not merely license software; Carapace partners with teams to navigate the practical application of AI in their operations. Cortex serves as Client’s operator-controlled harness, while Carapace’s Strategy & Support Retainer provides dedicated expertise to adapt workflows, maintain custodial control, and scale intelligently. Client pays for continuous partnership, not merely platform access.

This Agreement governs Client’s paid commercial use of the Cortex platform and related software, documentation, governance tools, secure routing features, browser extension, filemap discovery, audit logs, updates, and related platform features, together with any strategic integration, support, advisory, or implementation services purchased under an applicable Order Form.

1. Agreement Structure

1.1 Purpose & Partnership Scope

This Agreement governs the commercial use of the Cortex Platform and Carapace’s ongoing strategic integration services. Carapace acts as a technical partner to help Client adapt to evolving AI capabilities, ensuring custody-first deployment, taste-aligned execution, and human-in-the-loop governance. The Strategy & Support Retainer is not merely break/fix support; it is a continuous advisory engagement to guide agent configuration, workflow optimization, governance structure, and SaaS consolidation.

This Agreement consists of:

1. This Cortex Commercial License Agreement
2. Any applicable Order Form
3. Any applicable Statement of Work
4. The Carapace Strategy & Support Retainer Terms, if purchased
5. Any Security Exhibit, Data Processing Addendum, or SLA attached to or incorporated by the parties

If there is a conflict, the following order controls:

1. Signed Order Form or Statement of Work
2. Data Processing Addendum or Security Exhibit
3. This Agreement
4. Retainer Terms or support documentation
5. Online documentation

2. Definitions

“Cortex Platform” means the Cortex software, application, governance layer, browser extension, secure routing functions, filemap discovery, audit logs, platform updates, and related components made available by Carapace for commercial use.

“Active Operator” means a unique control context managing an isolated workflow environment, credential tunnel, approval gateway, or execution node. Each authenticated control session, filemap sync, or independent automation endpoint that operates within Cortex’s governance layer counts as one Active Operator.

Active Operators are control contexts, not merely login counts. For example:

- One user managing one workflow environment may count as one Active Operator.
- One user managing forty isolated workspaces may count as forty Active Operators.
- Each independent credential tunnel, isolated filemap sync, approval gateway, or automation endpoint may count separately.
- Passive viewers, read-only accounts, and external collaborators without control-plane access are excluded unless they initiate, approve, govern, or operate a controlled Cortex workflow.

“Client Data” means data, files, prompts, credentials, workflows, outputs, documents, configurations, business information, and other materials provided by or on behalf of Client.

“Credential Tunnel” means a controlled mechanism through which Cortex interacts with Client-authorized accounts, systems, or browser sessions without Carapace storing raw credentials long-term.

“Documentation” means user guides, technical materials, onboarding documents, workflow instructions, and other written materials provided by Carapace.

“Order Form” means a signed or accepted ordering document specifying the license, pricing, term, operator threshold, support package, add-ons, and other commercial terms.

“Support Retainer” means the monthly strategy and support services purchased by Client, as further described in the Carapace Strategy & Support Retainer Terms.

3. License Grant

Subject to Client’s payment of fees and compliance with this Agreement, Carapace grants Client a limited, non-exclusive, non-transferable, non-sublicensable commercial license to access and use the Cortex Platform during the applicable subscription term for Client’s internal business purposes.

Unless expressly stated in an Order Form, the license does not include the right to:

- Resell Cortex
- Provide managed Cortex services to third parties
- White-label Cortex

- Use Cortex as part of a competing product or service
- Transfer access to unaffiliated third parties
- Exceed purchased Active Operator limits
- Reverse engineer proprietary Carapace services or hosted components except where such restriction is prohibited by law

4. Platform License Package

The standard Cortex Platform License is **\$499 per month** or **\$5,590 per year**, unless otherwise stated in an Order Form.

The Platform License provides access to the Cortex control plane and includes:

- Cortex Platform access
- Governance layer
- Custody controls
- Secure routing
- Browser extension
- Filemap discovery
- Audit logs
- Platform updates
- Unlimited seats within the licensed environment, subject to Active Operator limits
- Base inclusion of up to **10 Active Operators** unless otherwise stated in the Order Form

The Platform License is separate from the Strategy & Support Retainer. The Platform License grants commercial access to the software; the Retainer provides ongoing advisory, support, configuration, and workflow optimization services.

5. Active Operator Threshold and Scaling

The base Cortex Commercial License includes up to **10 Active Operators**.

Each Active Operator above the included threshold is billed at **\$79 per Active Operator per month**, unless otherwise stated in an Order Form.

Scaling is strictly additive and does not require a forced tier jump. Client may add the following at any time, subject to availability and any applicable Order Form update:

- Additional Active Operators at \$79/operator/month
- Complex Workflow Routing Module at \$149/month
- Extended Support Retainer at \$199/month, increasing included support to 15 hours/month
- Multi-Workspace Governance Layer at \$249/month
- Other modules or services as specified in an Order Form

Add-ons are billed monthly or prorated annually, as applicable. Carapace may reasonably require an updated Order Form, written approval, or billing authorization before activating paid add-ons.

Carapace may periodically review Active Operator usage. If usage exceeds licensed limits, Carapace may notify Client and invoice for additional operators or require Client to reduce usage within a reasonable period.

6. Strategy & Support Retainer and Fees

The standard Strategy & Support Retainer is **\$399 per month** or **\$4,590 per year**, unless otherwise stated in an Order Form.

The Retainer provides up to **10 hours per month** of strategy, agent tuning, routing configuration, workflow optimization, and priority support. It includes one scope-bounded formal agent update per month and one quarterly architecture review.

The Retainer is a continuous advisory and implementation-support engagement. It is designed to help Client adapt Cortex to changing AI capabilities, improve operational workflows, evaluate SaaS consolidation opportunities, and maintain appropriate governance over human-in-the-loop automation.

Unless otherwise stated in the Order Form, standard pricing is:

Component	Monthly	Annual
Cortex Platform License	\$499/month	\$5,590/year
Strategy & Support Retainer	\$399/month	\$4,590/year
Total	\$898/month	\$10,180/year

Annual pricing reflects an approximate 17% savings against monthly pricing.

Fees are due according to the payment schedule in the Order Form.

7. Payment Terms

Unless otherwise stated in an Order Form:

- Monthly fees are billed monthly in advance.
- Annual fees are billed annually in advance.
- Payment is due within **[15 / 30] days** of invoice date.
- Late amounts may accrue interest at **[1.5% per month]** or the maximum amount permitted by law, whichever is lower.
- Client is responsible for applicable taxes, excluding taxes based on Carapace's net income.

8. Pilot-to-Commercial Transition and Pilot Credit

The Cortex Discovery & Integration Sprint does not automatically activate commercial service. Commercial service begins only when Client signs or accepts a separate Order Form or other written authorization for a Cortex Commercial License, Strategy & Support Retainer, or related paid service.

If Client completed a paid Cortex Discovery & Integration Sprint, the \$3,000 pilot fee may be credited to the first two billing cycles of recurring Cortex commercial service, as specified in the applicable Order Form.

Unless otherwise agreed in writing:

- The credit applies only to the first two months of recurring Cortex commercial service.
- The credit is not refundable.
- The credit is not transferable.
- The credit does not apply to third-party costs, pass-through expenses, custom development outside scope, or separately quoted services.
- The credit expires if Client does not activate commercial service within **[60 / 90] days** after pilot completion.

9. Data Custody

Client retains ownership of Client Data.

Carapace will not claim ownership over Client Data, workflows, voice/style models created specifically from Client materials, routing rules specific to Client operations, or Client-specific business configurations, except for Carapace Background IP as described below.

Carapace will not knowingly store raw Client credentials or production data long-term unless expressly authorized in writing by Client and subject to applicable security terms.

Cortex is designed to support:

- Credential tunneling
- Human-in-the-loop approval gates
- Audit logs
- Reversible routing where technically feasible
- Controlled workflow execution
- Custody-first deployment models

10. Client Responsibilities

Client is responsible for:

- Obtaining all rights necessary to use Client Data with Cortex
- Ensuring lawful use of Cortex
- Managing authorized users
- Protecting Client systems and accounts
- Maintaining appropriate backups
- Reviewing and approving outputs before commercial reliance
- Complying with industry-specific laws and regulations
- Maintaining third-party accounts, subscriptions, API keys, model provider accounts, and credentials used with Cortex

Cortex may integrate with third-party tools, model providers, software platforms, APIs, browsers, cloud services, local systems, and other external services. Client remains responsible for complying with third-party terms.

11. Third-Party Services and AI Providers

Cortex may route tasks through third-party AI providers, APIs, software services, plugins, or infrastructure selected or authorized by Client.

Unless expressly stated in an Order Form, Carapace does not provide or include third-party AI model usage, third-party SaaS subscriptions, cloud infrastructure charges, API fees, storage fees, or external service costs.

Client acknowledges that third-party services may change, degrade, fail, alter pricing, restrict API access, or modify functionality. Carapace is not responsible for third-party service failures, but may assist Client in mitigation or rerouting under applicable support terms.

12. Intellectual Property

12.1 Carapace Background IP

Carapace retains ownership of all pre-existing and independently developed intellectual property, including:

- Cortex software
- Platform architecture
- Core code
- Generic templates
- Generic agent patterns
- Generalized workflows
- Documentation
- Know-how
- Development tools
- System designs
- Carapace trademarks and branding
- Reusable methods, concepts, and techniques

12.2 Client IP

Client retains ownership of:

- Client Data
- Client documents and files
- Client confidential information
- Client-specific workflows derived from Client operations
- Client-specific voice/style models created from Client materials
- Client-specific routing rules
- Client-specific process maps and business logic

12.3 Deliverables

Unless otherwise specified in an Order Form:

- Client receives a license to use deliverables created specifically for Client during the term.
- Carapace retains ownership of reusable tools, general methods, generalized automation patterns, and non-client-specific components.
- Client may not resell, sublicense, or commercialize Carapace Background IP without written permission.

13. Confidentiality

Each party may receive confidential information from the other party. Confidential information includes non-public business, technical, financial, operational, product, security, customer, pricing, workflow, credential, and strategic information.

The receiving party will:

- Use confidential information only to perform under this Agreement
- Protect it using reasonable care
- Not disclose it to unauthorized third parties
- Limit access to personnel and contractors with a need to know

Confidentiality obligations do not apply to information that:

- Is publicly available without breach
- Was known before disclosure
- Is independently developed without use of confidential information
- Is lawfully received from a third party
- Must be disclosed by law, provided the receiving party gives reasonable notice if legally permitted

14. Security

Carapace will use commercially reasonable safeguards appropriate to the nature of the services provided.

Where applicable, security measures may include:

- Credential tunneling
- Access controls
- Audit logs
- Least-privilege configuration
- Approval gates
- Secure sandbox deployment
- Limited retention of production data
- Segregation of client environments where technically feasible

Client acknowledges that no system is perfectly secure and that AI workflow tools require careful human oversight.

15. Support and Service Levels

If Client purchases the Strategy & Support Retainer, support terms are governed by the Carapace Strategy & Support Retainer Terms.

Unless otherwise specified:

- Critical response target: 4 business hours
- Standard response target: 24 business hours
- Platform uptime target: 99% monthly uptime for hosted components controlled by Carapace

For clarity, response targets measure the time for Carapace to acknowledge, triage, and begin commercially reasonable action on a support request. They do not guarantee final resolution within that period, because resolution may depend on Client systems, third-party providers, API availability, local environments, credential access, or issue complexity.

Uptime commitments do not apply to:

- Client-controlled systems
- Local environments
- Third-party provider outages
- Scheduled maintenance
- Force majeure events
- Client misconfiguration
- Unsupported modifications
- Experimental features

16. Term and Renewal

The initial term is stated in the Order Form.

Unless otherwise stated:

- Monthly subscriptions renew month-to-month.
- Annual subscriptions renew annually.
- Either party may terminate monthly service with 30 days' written notice.
- Annual subscriptions may be terminated at the end of the annual term with 30 days' written notice before renewal.

17. Suspension

Carapace may suspend access if:

- Client fails to pay undisputed amounts when due
- Client materially breaches this Agreement
- Use creates a security risk
- Use violates law
- Use exceeds license scope after notice and opportunity to cure

Carapace will use reasonable efforts to provide notice and an opportunity to cure when practical.

18. Termination

Either party may terminate for material breach if the breach is not cured within **30 days** after written notice.

Upon termination:

- Client must stop using Cortex commercially unless otherwise authorized
- Client must pay outstanding amounts
- Carapace will assist with reasonable transition or export as described in the Order Form or support terms
- Confidentiality, IP, payment, limitation of liability, and other provisions intended to survive will survive

19. Warranty Disclaimer

Except as expressly stated in this Agreement, Cortex and related services are provided **“as is”** and **“as available.”** Carapace disclaims all implied warranties, including merchantability, fitness for a particular purpose, title, and non-infringement.

Carapace does not warrant that Cortex will be error-free, uninterrupted, or produce legally, financially, medically, operationally, or commercially reliable outputs without human review.

20. AI Output Disclaimer

Client acknowledges that AI-generated outputs may be inaccurate, incomplete, biased, outdated, or unsuitable for particular uses.

Client is responsible for human review, approval, and final decision-making. Cortex is designed to amplify human judgment and rhythm, not replace professional oversight.

21. Limitation of Liability

To the maximum extent permitted by law, neither party will be liable for indirect, incidental, special, consequential, exemplary, punitive, or lost profit damages.

Carapace's aggregate liability under this Agreement will not exceed the fees paid by Client to Carapace during the **six months** preceding the event giving rise to liability, except for liability that cannot be limited under applicable law.

22. Indemnification

22.1 Client Indemnity

Client will defend and indemnify Carapace against claims arising from:

- Client Data
- Client's unlawful use of Cortex
- Client's breach of third-party terms
- Client's commercial use of outputs without required review
- Client's breach of this Agreement

22.2 Carapace Indemnity

Carapace will defend and indemnify Client against third-party claims alleging that Cortex, as provided by Carapace and used according to this Agreement, infringes a third party's intellectual property rights.

Carapace will have no obligation for claims arising from:

- Client modifications
- Client Data
- Third-party services
- Combination with non-Carapace products
- Use outside the scope of this Agreement
- Community-created archetypes, templates, or integrations not provided by Carapace

23. Publicity

Carapace may identify Client as a customer only with Client's prior written consent, unless otherwise stated in the Order Form.

Case studies, testimonials, logos, and public references require separate written approval.

24. Assignment

Neither party may assign this Agreement without the other party's consent, except to an affiliate or successor in connection with merger, acquisition, corporate reorganization, or sale of substantially all assets.

25. Governing Law and Venue

This Agreement is governed by the laws of the State of **[Insert State]**. Venue will be in the state or federal courts located in **[Insert County/State]**, unless otherwise required by law.

26. Entire Agreement

This Agreement, together with applicable Order Forms and incorporated exhibits, is the entire agreement between the parties regarding Cortex commercial use and supersedes prior discussions or agreements on the same subject.

3. Carapace Strategy & Support Retainer Terms

STRATEGY & SUPPORT RETAINER TERMS

These Strategy & Support Retainer Terms govern support and strategy services provided by Carapace to Client in connection with Cortex.

1. Included Monthly Services

The standard Strategy & Support Retainer includes up to **10 hours per month** of support and strategy services.

Included services may include:

- Agent tuning
- Workflow refinement
- Routing adjustments
- Approval gate configuration
- Documentation updates
- Troubleshooting
- Quarterly architecture review
- Priority routing guidance
- Commercial tier recommendations
- SaaS consolidation planning
- One formal agent update per month
- Ticket-based support intake

2. Monthly Fee

The standard Strategy & Support Retainer is **\$399 per month** or **\$4,590 per year**, unless otherwise stated in an Order Form.

3. Extended Support

Client may purchase the Extended Support Retainer add-on for **\$199 per month**, increasing included support to **15 hours per month**.

Unless otherwise stated, unused hours do not roll over.

4. Scope Boundaries

The retainer does not include:

- Custom SaaS builds
- Major new software features
- Third-party subscription costs
- Third-party API costs
- Large-scale data migration
- Legal, financial, medical, or regulated professional advice
- Security audits beyond agreed scope
- Custom integrations requiring substantial development
- Emergency incident response outside Cortex-controlled components
- On-site services unless separately agreed

Work outside scope may be quoted separately or added through a module or Statement of Work.

5. Agent Updates

The retainer includes **one formal agent update per month**, scope-bounded to reasonable configuration, prompt, routing, tool, or behavior improvements.

Major agent redesigns, multi-agent architecture rebuilds, or custom software development may require a separate quote.

6. Quarterly Architecture Review

The retainer includes one quarterly architecture review. The review may include:

- Workflow performance review
- Active Operator usage review
- SaaS replacement progress
- ROI projection update

- Governance recommendations
- Security and credential routing review
- Roadmap recommendations

7. Response Times

Unless otherwise stated in an Order Form:

- Critical issue response target: 4 business hours
- Standard issue response target: 24 business hours
- General strategic requests: commercially reasonable response based on queue and urgency

A **Critical Issue** means a material failure of a Carapace-controlled production component that prevents Client from using a core licensed Cortex function.

8. Support Channels

Support requests must be submitted through the approved intake channel designated by Carapace, such as ticketing, email, portal, or project management system.

Requests made outside approved channels may not be tracked against service levels.

9. Client Cooperation

Client agrees to provide:

- Timely access to relevant systems
- Accurate descriptions of issues
- Test credentials or sandbox access when needed
- Responsible personnel for approvals
- Prompt review of proposed changes
- Compliance with third-party service terms

10. Overage

If Client exceeds included monthly support hours, Carapace may:

- Pause non-critical support until the next billing period
- Request approval for overage
- Bill overage at **\$250/hour**
- Recommend an upgraded retainer or separate SOW

Overage will not be billed without Client approval unless expressly authorized in the Order Form.

4. Cortex Discovery & Integration Sprint Agreement

CORTEX DISCOVERY & INTEGRATION SPRINT AGREEMENT

This Cortex Discovery & Integration Sprint Agreement (“**Agreement**”) is entered into by and between Carapace LLC (“**Carapace**”) and the customer identified in the applicable Order Form (“**Client**”).

1. Purpose

The Cortex Discovery & Integration Sprint is a focused pilot designed to map Client workflows, evaluate credential/security needs, deploy a secure Cortex sandbox, build 1–2 live automations, establish filemap architecture, and project SaaS consolidation ROI.

The Sprint is intended to demonstrate practical value and determine the appropriate commercial Cortex tier or deployment path.

2. Sprint Fee

The Sprint fee is **\$3,000**, due according to the payment terms in the Order Form.

3. Commercial Credit

If Client proceeds to a recurring Cortex commercial license and support package, the \$3,000 Sprint fee will be credited toward the first two months of recurring service.

Unless otherwise stated:

- The credit is non-refundable.
- The credit is not transferable.
- The credit applies only to Cortex recurring commercial service.
- The credit does not apply to third-party costs, custom development outside Sprint scope, or separately quoted services.
- The credit expires if commercial service is not activated within **[60 / 90] days** after Sprint completion.

4. Sprint Deliverables

Carapace will provide the following deliverables:

1. One-day workflow mapping and credential/security audit
2. Secure Cortex sandbox deployment, local/cloud hybrid as appropriate
3. One to two live automations selected by mutual agreement
4. Filemap architecture and embedding breadcrumb setup

5. SaaS consolidation ROI projection
6. Commercial tier or deployment recommendation
7. Post-pilot handoff summary

5. Example Automations

Example Sprint automations may include:

- Transcript-to-content routing
- Voice/style model capture and routing
- Browser-extension PDF workflow
- Document intake and summarization
- Filemap discovery workflow
- Approval-gated content drafting
- Lead intake routing
- Internal knowledge retrieval prototype
- Creator pipeline automation
- Admin workflow automation

Final automation selection depends on feasibility, Client access, available third-party services, and Sprint scope.

6. Out of Scope

The Sprint does not include:

- Full production deployment
- Unlimited automations
- Custom SaaS product development
- Enterprise security certification
- Legal, financial, medical, or regulated professional advice
- Third-party subscription costs
- Long-term hosting
- Ongoing support after Sprint completion
- Major data migration
- Custom integrations beyond agreed Sprint scope

Out-of-scope work may be quoted separately.

7. Client Responsibilities

Client will provide:

- Timely access to necessary systems
- Authorized personnel for workflow mapping
- Test data or sandbox data where possible
- Approval for selected automations

- Required third-party accounts or API access
- Reasonable cooperation during Sprint scheduling

Delays caused by lack of Client access, approvals, or cooperation may extend the Sprint timeline or require rescheduling.

8. Data Custody and Credentials

Client retains ownership of Client Data.

Carapace will not knowingly store raw credentials or production data long-term unless expressly authorized in writing.

The Sprint may use credential tunnels, browser sessions, sandbox accounts, temporary access, or Client-controlled environments to reduce credential exposure.

9. IP Ownership

Client retains ownership of Client Data, Client-specific workflows, Client-specific routing rules, and voice/style models derived from Client materials.

Carapace retains ownership of Cortex, platform architecture, reusable tools, generalized workflow methods, templates, code, and background intellectual property.

Unless otherwise stated, Client receives a license to use Sprint deliverables for internal evaluation and, upon activation of a commercial license, internal commercial use according to the applicable commercial agreement.

10. No Auto-Renewal

The Sprint ends upon delivery of the Sprint deliverables. It does not automatically renew and does not create a recurring commercial license unless Client signs or accepts a separate Order Form or Commercial License Agreement.

11. Warranty Disclaimer

Sprint deliverables are pilot-stage and may be prototypes, proof-of-concept workflows, sandbox deployments, or experimental automations.

Carapace does not warrant that Sprint deliverables are production-ready unless expressly stated in writing.

12. Limitation of Liability

Carapace's total liability under this Sprint Agreement will not exceed the Sprint fee paid by Client, except where liability cannot be limited by law.

13. Completion and Handoff

At Sprint completion, Carapace will provide a handoff summary that may include:

- Workflow map
 - Credential/security observations
 - Sandbox summary
 - Automation summary
 - Filemap structure
 - ROI projection
 - Commercial recommendation
 - Next-step implementation plan
-

5. Order Form / Statement of Work Template

CARAPACE / CORTEX ORDER FORM

This Order Form is entered into by and between Carapace LLC (“**Carapace**”) and the customer identified below (“**Client**”). This Order Form incorporates the applicable Carapace agreements and terms identified below.

1. Client Information

Client Legal Name: [Insert]

Client Contact: [Insert]

Email: [Insert]

Billing Address: [Insert]

Project Contact: [Insert]

2. Services / Products Ordered

Select all that apply:

- ☐ Cortex Discovery & Integration Sprint — \$3,000
- ☐ Cortex Platform License — \$499/month or \$5,590/year
- ☐ Strategy & Support Retainer — \$399/month or \$4,590/year
- ☐ Additional Active Operators — \$79/operator/month
- ☐ Complex Workflow Routing Module — \$149/month
- ☐ Extended Support Retainer — \$199/month
- ☐ Multi-Workspace Governance Layer — \$249/month
- ☐ Private Deployment — Custom quote
- ☐ Custom Integration — Custom quote
- ☐ Other: [Insert]

3. Pricing Summary

Item	Quantity	Monthly Fee	Annual Fee	Notes
Cortex Platform License	1	\$499	\$5,590	Includes up to 10 Active Operators
Strategy & Support Retainer	1	\$399	\$4,590	Includes 10 hrs/month
Additional Active Operators	[#]	\$79 each	[Insert]	Beyond 10 included
Workflow Routing Module	[Y/N]	\$149	[Insert]	Optional
Extended Support	[Y/N]	\$199	[Insert]	15 hrs/month total
Multi-Workspace Governance	[Y/N]	\$249	[Insert]	Optional
Other	[Insert]	[Insert]	[Insert]	[Insert]

Total Monthly Fee: [Insert]

Total Annual Fee: [Insert]

Billing Frequency: [Monthly / Annual]

Payment Due: [Upon signing / Net 15 / Net 30]

4. Pilot Credit

If applicable:

Pilot Fee Paid: \$3,000

Credit Applied: \$3,000 toward first two months of recurring commercial service

Credit Expiration: [Insert Date]

5. Active Operator Threshold

Included Active Operators: 10

Additional Active Operators Purchased: [Insert]

Total Licensed Active Operators: [Insert]

Active Operators are counted according to the Cortex Commercial License Agreement.

6. Term

Start Date: [Insert]

Initial Term: [Monthly / Annual / Custom]

Renewal: [Month-to-month / Annual / Non-renewing]

Termination Notice: 30 days unless otherwise stated

7. Scope Notes

[Insert project-specific scope, deployment notes, integrations, exclusions, client responsibilities, assumptions, and milestones.]

8. Incorporated Terms

This Order Form incorporates, as applicable:

- Cortex Commercial License Agreement
- Carapace Strategy & Support Retainer Terms
- Cortex Discovery & Integration Sprint Agreement
- Security Exhibit, if attached
- Data Processing Addendum, if attached
- Any mutually signed Statement of Work

9. Signatures

Carapace LLC

By: ____

Name: ____

Title: ____

Date: ____

Client

By: ____

Name: ____

Title: ____

Date: ____

6. Optional Short-Form Client Proposal Language

Cortex Discovery & Integration Sprint

Carapace begins with a focused \$3,000 Discovery & Integration Sprint. During the Sprint, we map your workflows, review credential and security needs, deploy a secure Cortex sandbox, build 1–2 working automations, establish filemap architecture, and project SaaS consolidation ROI.

If you proceed into a recurring Cortex commercial plan, the full \$3,000 Sprint fee is credited toward your first two months of service.

Cortex Commercial Plan

The standard Cortex commercial plan combines the Cortex Platform License and Strategy & Support Retainer:

- Cortex Platform License: \$499/month
- Strategy & Support Retainer: \$399/month
- Total: \$898/month
- Annual: \$10,180/year

The plan includes up to 10 Active Operators, custody controls, secure routing, browser extension, filemap discovery, audit logs, platform updates, 10 hours/month of support and tuning, one formal agent update/month, quarterly architecture review, and priority routing.

Scaling is additive. Additional Active Operators are \$79/operator/month, with optional modules for complex workflow routing, extended support, and multi-workspace governance.

Core Philosophy

Cortex is designed to amplify human judgment, rhythm, and taste. It does not replace final human decision-making. The platform is built around custody-first architecture, human-in-the-loop approval gates, auditable routing, and practical workflow consolidation.

7. Drafting Issues for Legal Counsel

Before use, counsel should review and finalize:

1. State law and venue
2. Whether Community Edition is source-available, open-core, or proprietary freeware
3. Exact Community Edition thresholds
4. Commercial use definition
5. Warranty and liability limits
6. AI output disclaimers
7. Data Processing Addendum needs
8. Privacy Policy alignment
9. Security representations
10. Consumer law implications for Community Edition
11. IP ownership of client-specific deliverables
12. Treatment of community-created archetypes and marketplace contributions
13. Whether support SLA should include service credits
14. Tax, payment, and renewal language
15. Partner/reseller program terms
16. Export controls and sanctions language
17. Acceptable Use Policy
18. Open-source dependency compliance

- 19. Accessibility and promotional UI standards
 - 20. License enforcement mechanism and audit rights
-

8. Next Recommended Documents

The next documents to draft should be:

1. **Privacy Policy**

Explaining what Cortex does and does not collect, especially around local-first workflows, telemetry, license checks, and hosted services.

2. **Data Processing Addendum**

Needed for business clients, especially if Cortex touches customer data, employee data, health-adjacent data, legal documents, or client files.

3. **Security Exhibit**

Plain-English security practices around credential tunnels, sandboxing, logging, retention, access controls, and third-party providers.

4. **Acceptable Use Policy**

Prohibited uses, abuse prevention, unauthorized access, malware, credential theft, spam, regulated activity, and harmful automation.

5. **Partner Program Agreement**

For MSPs, consultants, agencies, automation shops, IT providers, and local technology partners who deploy Cortex for their own clients.

6. **Marketplace / Archetype Contributor Terms**

For community-created workflows, templates, archetypes, prompts, scripts, integrations, and tutorials.